



Slaughterhouses Act 1974

1974 CHAPTER 3

An Act to consolidate certain enactments relating to slaughterhouses and knackers' yards and the slaughter of animals.
[8th February 1974]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

SLAUGHTERHOUSES AND KNACKERS' YARDS

Licensing of private slaughterhouses and knackers' yards

1.—(1) It shall be an offence—

- (a) for the occupier of any premises to use them as a slaughterhouse or knacker's yard, or to permit them to be so used, unless he holds a licence under this section authorising him to keep those premises as a slaughterhouse or, as the case may be, a knacker's yard, or
- (b) for any person other than the occupier to use any premises as a slaughterhouse or knacker's yard, unless the occupier holds such a licence in respect of those premises.

(2) Licences under this section (in this Part of this Act referred to as "licences") shall be granted by the local authority, subject to and in accordance with the provisions of this Part.

PART I

(3) Where any premises used or to be used for the confinement of animals awaiting slaughter in a slaughterhouse or knacker's yard are situated outside the curtilage of the premises used or to be used for the slaughter, separate licences may be granted authorising the use of those premises for the purposes of the confinement and the slaughter respectively.

(4) In relation to the use of any premises for or in connection with the slaughter of horses, a licence shall be of no effect unless it expressly authorises the use of the premises for that purpose.

Slaughterhouse
licences and
applications
for such
licences.

2.—(1) Where a local authority receive from the occupier of, or a person proposing to occupy, any premises an application for the grant or renewal of a licence authorising him to occupy those premises as a slaughterhouse, then, subject to the following provisions of this section and to sections 3 and 6 below, the authority—

(a) shall grant or, as the case may be, renew the licence in accordance with the application if they are satisfied that the requirements mentioned in subsection (2) below are, or within a reasonable time will be, complied with in respect of the premises; and

(b) shall refuse to grant or, as the case may be, renew the licence if they are not so satisfied.

(2) The requirements referred to in subsection (1)(a) above are the requirements relating to slaughterhouses—

1955 c. 16
(4 & 5 Eliz. 2).

(a) of regulations under section 13 of the Food and Drugs Act 1955;

(b) of byelaws, if any, made by the authority under section 12 below; and

(c) of construction regulations under section 38 below.

(3) The reference in subsection (2)(c) above to the requirements of construction regulations under section 38 below shall, in relation to an application which does not state expressly that it is for a slaughterhouse licence containing an authorisation in respect of horses under section 1(4) above, be construed as excluding such of those requirements as relate only to horses; but any licence granted or renewed in pursuance of such an application shall not contain such an authorisation.

(4) A local authority shall not grant or renew a slaughterhouse licence until an officer of the authority has inspected the premises named in the application and has made a report on those premises.

PART I

(5) A local authority may require a person who applies for the grant or renewal of a slaughterhouse licence to give to them, before his application is considered, information as to any other licence in respect of a slaughterhouse or knacker's yard which he holds or has held, either in their district or in the district of another local authority; and if an applicant who is so required gives the authority any information which is false in a material respect, he shall be guilty of an offence.

(6) The Minister may by regulations—

- (a) require slaughterhouse licences and applications for the grant or renewal of such licences to be in such form and to contain such particulars of all premises to which the licence or application relates as may be prescribed by the regulations;
- (b) require local authorities to keep such records of all slaughterhouse licences granted by them, including the particulars mentioned in paragraph (a) above, and to furnish the Minister with such information in connection with the grant of slaughterhouse licences as may be so prescribed;

and each local authority shall make any such records or copies thereof available during reasonable hours at some convenient place or places in their district for inspection by any person without charge.

(7) Regulations under subsection (6) above shall be made by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

3.—(1) Where—

- (a) a local authority receive an application for the grant or renewal of a slaughterhouse licence in respect of any premises, being an application to which this section applies, and
- (b) it appears to the authority that the proposed slaughterhall forms part of a building another part of which, being a part within the curtilage of those premises, is, or is proposed to be, used or adapted for use as a dwelling,

Certain applications for slaughterhouse licence to be refused forthwith.

then, subject to section 6 below, the authority shall refuse the application forthwith unless they are satisfied that, if the licence is granted or renewed, no part of that building within the curtilage of those premises will be used as a dwelling at any time while the licence is in force.

PART I

(2) This section applies to any application—

- (a) for the grant of a new slaughterhouse licence ; or
- (b) for the grant or renewal of a slaughterhouse licence in respect of premises—
 - (i) in respect of which a new slaughterhouse licence has been granted since 1st August 1958 ; or
 - (ii) in the case of which a holder of a slaughterhouse licence in respect of those premises has been convicted of an offence under section 11(1) below.

(3) In subsection (2) above “ new ”, in relation to a slaughterhouse licence, means in respect of premises in respect of which such a licence was not in force at, or at any time less than 12 months before, the date when the application for the licence was made.

Knacker's
yard licences
and
applications
for such
licences.

4.—(1) Where a local authority receive from the occupier of, or a person proposing to occupy, any premises an application for the grant or renewal of a licence authorising him to occupy those premises as a knacker's yard, then, subject to subsections (3) and (4) below, the authority may grant or, as the case may be, renew the licence.

(2) Without prejudice to subsection (1) above and subject to section 6 below, a local authority may refuse to grant or, as the case may be, renew a knacker's yard licence in respect of any premises if they are not satisfied that the requirements relating to knackers' yards—

1955 c. 16
(4 & 5 Eliz. 2).

(a) of regulations under section 13 of the Food and Drugs Act 1955, or

(b) of byelaws, if any, made by the authority under section 12 below,

are complied with in respect of those premises, or will be complied with before the date on which the licence or renewed licence comes into force.

(3) Subject to section 6 below, a local authority shall refuse to grant or, as the case may be, renew a knacker's yard licence in respect of any premises unless they are satisfied that the requirements relating to knackers' yards of construction regulations under section 38 below are complied with in respect of those premises, or will be complied with before the date on which the licence or renewed licence comes into force.

(4) A local authority shall not grant or renew a knacker's yard licence until an officer of the authority has inspected the premises named in the application and has made a report on those premises.

(5) A local authority may require a person who applies for the grant or renewal of a knacker's yard licence to give to them, before his application is considered, information as to any other licence in respect of a slaughterhouse or knacker's yard which he holds or has held, either in their district or in the district of another local authority; and if an applicant who is so required gives the authority any information which is false in a material respect, he shall be guilty of an offence.

5.—(1) If a local authority refuse to grant or renew a licence, they shall forthwith give notice to the applicant of their decision in the matter, and a statement of the grounds on which that decision was based shall—

- (a) in the case of a refusal of a slaughterhouse licence under section 3 above, be included in the notice;
- (b) in any other case, if so required by the applicant within 14 days from the date of the decision, be given to him by the authority not later than 48 hours after they receive the requirement.

(2) Every notice under subsection (1) above shall state the right of appeal to a magistrates' court for which provision is made by section 6(1) below and the time within which such an appeal may be brought.

(3) For the purposes of this section and sections 6 and 7 below, a refusal by a local authority—

- (a) to grant a licence with an authorisation in respect of horses under section 1(4) above, or
- (b) to renew a licence with such an authorisation,

shall be treated as a refusal to grant or, as the case may be, as a refusal to renew a licence.

6.—(1) A person aggrieved by the refusal of a local authority to grant or renew a licence may appeal to a magistrates' court, and that court may—

Appeals
against
refusal of
licence.

- (a) in the case of a refusal of a slaughterhouse licence under section 3 above, if satisfied that the authority acted unreasonably in refusing the application on the grounds stated in the notice, declare the refusal to be of no effect;
- (b) in any other case, vary or reverse the authority's decision.

(2) The procedure on an appeal to a magistrates' court under subsection (1) above shall be by way of complaint for an order, and the Magistrates' Courts Act 1952 shall apply to the proceedings.

PART I

(3) The time within which such an appeal may be brought shall be 21 days from the date on which notice of the authority's refusal was served upon the person desiring to appeal, and for the purpose of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) A person aggrieved by an order, determination or other decision of a magistrates' court under subsection (1) above may appeal to the Crown Court.

Right to
continue to
use premises
pending
appeal.

7. Where a decision of a local authority refusing a licence, or a decision of a magistrates' court on appeal against such a decision, makes it unlawful for a person to use any premises for a purpose for which he or his immediate predecessor had been lawfully using them at the date when the decision of the authority was given, he may continue to use them for that purpose until the time for appealing has expired and, if an appeal is lodged, until the appeal is finally disposed of or abandoned or has failed for want of prosecution.

Effect of
court's
decision.

8. Where on an appeal under section 6 above a court declares a refusal of a slaughterhouse licence under section 3 above to be of no effect, or varies or reverses any other decision of a local authority, it shall be the duty of the authority to give effect to the order of the court.

Duration
of licences.

9. A licence shall remain in force for such period not exceeding 13 months as may be fixed by the local authority, but may from time to time be renewed by them for a period not exceeding 13 months at any one time.

Temporary
continuance
of licence
on death.

10. Where a person who holds a licence dies, the licence shall, unless previously cancelled, enure for the benefit of his personal representative, or of his widow or any other member of his family, until the expiration of two months from his death, or until the expiration of such longer period as the local authority may allow.

Regulation of private slaughterhouses and knackers' yards

Restriction of
dwellings in
slaughter-
houses.

11.—(1) Where a slaughterhouse licence is in force in respect of any premises, then, subject to subsection (2) below, if any person causes or permits to be used as a dwelling any part of a building which contains a slaughterhall, being a part within the curtilage of those premises, he shall be guilty of an offence.

PART I

(2) Subsection (1) above shall not apply if the part of the building in question has been appropriated as a dwelling continuously since before 1st August 1958 and no application to which section 3 above applies has been made in respect of the premises since that date.

(3) If a person convicted of an offence under subsection (1) above is the holder of a slaughterhouse licence in respect of the premises in question, the court may, in addition to any other punishment, cancel the licence.

(4) The provisions of section 7 above with respect to the right to continue to use premises shall also apply where the decision of a court cancelling a slaughterhouse licence under subsection (3) above makes it unlawful for a person to use as a slaughterhouse any premises which he was lawfully using for that purpose before the decision of the court was given.

12.—(1) A local authority may, and shall if so required by the Minister, make byelaws—

Byelaws about slaughterhouses and knackers' yards.

(a) for securing that slaughterhouses and knackers' yards are kept in a sanitary condition and are properly managed, and

(b) requiring a person licensed to keep a knacker's yard to keep, and to produce when required, records of animals brought into the yard and of the manner in which those animals and the different parts thereof were disposed of.

(2) Nothing in Part II of this Act shall be construed as restricting any power to make byelaws under paragraph (a) of subsection (1) above; but, in so far as any byelaws under that subsection conflict with regulations under section 13 of the Food and Drugs Act 1955, the regulations shall prevail.

1955 c. 16
(4 & 5 Eliz. 2).

(3) The confirming authority in respect of any byelaws under this section shall be the Minister.

(4) If a person convicted of an offence against any byelaw made under this section holds a licence in respect of the premises where the act was committed, the court may, in addition to any other punishment, cancel the licence.

13.—(1) The occupier of a slaughterhouse or knacker's yard in respect of which a licence is in force shall display in a conspicuous position on the premises a legible notice with the words "Licensed Slaughterhouse" or "Licensed Knacker's Yard", as the case may be.

Signs to be displayed at slaughterhouses and knackers' yards.

(2) A person who fails to comply with the provisions of this section shall be liable to a fine not exceeding £10.

PART I***Restriction of private slaughterhouses***

Restriction of
slaughter-
houses only
by agreement.

14. Nothing in, or in any instrument made under, any local Act shall make unlawful, or subject any person to any penalty by reason of, the use of any premises as a slaughterhouse or the slaughter of animals on any premises at a time when a slaughterhouse licence is in force in respect of the premises ; but, with a view to reducing the number of slaughterhouses, a local authority may—

- (a) acquire by agreement any premises in their district which are used as a slaughterhouse and discontinue the use of the premises for that purpose ;
- (b) agree with the person interested in any premises in the district which are used as a slaughterhouse for the discontinuance of slaughtering on those premises.

Provision and management of public slaughterhouses

Power to
provide public
slaughter-
houses.

15.—(1) Subject to the provisions of this section, a local authority may provide public slaughterhouses.

(2) Any proposal by a local authority to provide under this section a slaughterhouse within the district of another local authority shall require the consent of that authority ; but such consent shall not be unreasonably withheld, and any question whether or not the consent of an authority for the purposes of this subsection is unreasonably withheld shall be referred to and determined by the Minister.

(3) It is hereby declared that the power conferred on local authorities by subsection (1) above is exercisable in either of the following ways, that is to say—

- (a) by acquiring (whether by purchase, lease or otherwise) or appropriating land and providing slaughterhouse facilities there, or
- (b) by acquiring (whether by purchase, lease or otherwise) land on which such facilities have been provided by other persons and securing that such facilities continue to be provided there ;

and references in this Part of this Act to a local authority providing a slaughterhouse shall be construed accordingly.

(4) In subsection (3) above “slaughterhouse facilities” means facilities for carrying on the activities of a slaughterhouse, including plant and apparatus and the services of persons as slaughtermen or otherwise.

(5) Nothing in sections 1 to 14 above shall apply in relation to a public slaughterhouse provided by a local authority.

16.—(1) A local authority who have provided a public slaughterhouse—

PART I
Management
of public
slaughter-
houses.

- (a) may, and shall if so required by the Minister, make byelaws for securing that the slaughterhouse is kept in a sanitary condition and is properly managed ;
- (b) may provide plant or apparatus for disposing of, treating or processing waste matters, refuse or by-products, resulting from the slaughter of animals in the slaughterhouse ;
- (c) may, if they think fit, employ persons to slaughter or stun, in accordance with Part II of this Act, animals to which section 36 below applies ;
- (d) subject to subsection (2) below, may make such arrangements as they think expedient for securing that all the activities of the slaughterhouse, or any particular activities, are carried on there by servants or agents of theirs to the exclusion of other persons.

(2) A local authority shall not exercise the power conferred by subsection (1)(d) above in such a manner as to deny any religious community reasonable facilities for obtaining as food the flesh of animals slaughtered by the method specially required by their religion.

(3) In so far as any byelaws under subsection (1)(a) above conflict with regulations under section 13 of the Food and Drugs Act 1955, the regulations shall prevail.

1955 c. 16
(4 & 5 Eliz. 2).

(4) The confirming authority in respect of any byelaws under subsection (1)(a) above shall be the Minister.

17.—(1) A local authority who have provided a public slaughterhouse may make charges, according to scales determined by them from time to time, in respect of the use of the slaughterhouse or of any services provided there.

Charges in
respect of
public
slaughter-
houses.

(2) Every scale of charges determined by a local authority for the purposes of this section shall be published by them in at least one newspaper circulating in their district and in such other manner (if any) as they think expedient for informing persons interested.

18.—(1) Subject to the provisions of this section, a local authority who have provided, or are about to provide, a public slaughterhouse, may, with the approval of the Minister, provide a cold store or refrigerator for the storage and preservation of meat and other articles of food and may make charges in respect of the use of any such store or refrigerator.

Power to
provide cold
stores and
refrigerators
for public
slaughter-
houses.

PART I

(2) Any proposal by a local authority to provide under this section a cold store or refrigerator within the district of another local authority shall require the consent of that authority; but that consent shall not be unreasonably withheld and any question whether or not the consent of an authority for the purposes of this subsection is unreasonably withheld shall be referred to and determined by the Minister.

(3) A local authority who intend to apply for the approval of the Minister under subsection (1) above shall, at least one month before making the application, give notice of their intention by advertisement in one or more local newspapers circulating in their district, and, where the consent of the local authority of another district is required, in one or more local newspapers circulating in that district.

(4) The Minister shall consider any objection to the authority's proposals which he may receive within four weeks after the publication of the advertisement from any person appearing to him to be interested, and, in the event of any such objection being received and not withdrawn, shall cause a local inquiry to be held.

1972 c. 70.

(5) Subsections (2) to (5) of section 250 of the Local Government Act 1972 shall apply in relation to a local inquiry under subsection (4) above as they apply in relation to a local inquiry which a Minister causes to be held under subsection (1) of that section.

Enforcement and legal proceedings

Execution and
enforcement
of Part I.

19. It shall be the duty of every local authority to execute and enforce in their district the provisions of any section of this Part of this Act with respect to which the duty is not expressly, or by necessary implication, imposed on some other authority.

Powers of
entry.

20.—(1) Subject to the provisions of this section, an authorised officer of a council shall, on producing, if so required, some duly authenticated document showing his authority, have a right to enter any premises at all reasonable hours—

(a) for the purpose of ascertaining whether there is or has been on, or in connection with, the premises any contravention of the provisions of this Part of this Act or of any byelaws made under it, being provisions which the council are required or empowered to enforce, and

(b) generally for the purpose of the performance by the council of their functions under this Part of this Act or under any such byelaws;

but admission to any premises used only as a private dwelling-house shall not be demanded as of right unless 24 hours' notice of the intended entry has been given to the occupier.

PART I

(2) If a justice of the peace, on sworn information in writing,—

(a) is satisfied that there is reasonable ground for entry into any premises for any such purpose as mentioned in subsection (1) above, and

(b) is also satisfied either—

(i) that admission to the premises has been refused, or a refusal is apprehended and that notice of the intention to apply for a warrant has been given to the occupier, or

(ii) that an application for admission, or the giving of such a notice, would defeat the object of the entry, or that the case is one of urgency, or that the premises are unoccupied or the occupier temporarily absent,

the justice may by warrant under his hand, which shall continue in force for a period of one month, authorise the council by any authorised officer to enter the premises, if need be by force.

(3) An authorised officer entering any premises by virtue of this section, or of a warrant issued under it, may take with him such other persons as may be necessary, and on leaving any unoccupied premises which he has entered by virtue of such a warrant shall leave them as effectively secured against trespassers as he found them.

(4) If any person who, in compliance with the provisions of this section, or of a warrant issued under it, is admitted into a factory or workplace discloses to any person any information obtained by him in the factory or workplace with regard to any manufacturing process or trade secret, he shall, unless the disclosure was made in the performance of his duty, be liable to a fine not exceeding £100 or to imprisonment for a term not exceeding three months.

(5) Nothing in this section shall authorise any person, except with the permission of the local authority under the Diseases of Animals Act 1950, to enter any cowshed or other place in which an animal affected with any disease to which that Act applies is kept and which is situated in a place declared under that Act to be infected with such a disease. 1950 c. 36.

(6) In this section “authorised officer”, in relation to a council, means an officer of the council authorised by them in writing, either generally or specially, to act in matters of any specified kind or in any specified matter.

21.—(1) A person who wilfully obstructs any person acting in the execution of this Part of this Act, or of any byelaw or warrant made or issued under it, shall be liable— **Obstruction.**

PART I

- (a) if the court is satisfied that he committed the offence with intent to prevent the discovery of some other offence under this Part of this Act, or if he has within the previous 12 months been convicted of an offence under this subsection, to a fine not exceeding £50 or to imprisonment for a term not exceeding one month ;
- (b) in any other case, to a fine not exceeding £20.

(2) A person who—

- (a) fails to give to any person acting in the execution of this Part of this Act, or of any byelaw or warrant made or issued under it, any assistance which that person may reasonably request him to give ;
- (b) fails to give to any such person any information which that person is expressly authorised by this Part of this Act to call for or may reasonably require ; or
- (c) when required to give any such information, knowingly makes any misstatement in respect thereof,

shall be liable to a fine not exceeding £20 ; but nothing in this subsection shall be construed as requiring a person to answer any question or give any information, if to do so might incriminate him.

Institution of proceedings by local authorities.

22. A local authority may institute proceedings under any section of this Part of this Act if, and only if, they are the authority charged with its execution and enforcement.

Prosecution and punishment of offences.

23.—(1) All offences under this Part of this Act and byelaws made under it shall be punishable on summary conviction.

(2) A person guilty of an offence under this Part of this Act shall, unless a special punishment for that offence is provided by this Part, be liable—

- (a) to a fine not exceeding £100 or to imprisonment for a term not exceeding three months or to both, and
- (b) in the case of a continuing offence, to a further fine not exceeding £5 for each day during which the offence continues after conviction.

Offences by corporations.

24.—(1) Where an offence under this Part of this Act which has been committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate, or any person who was purporting to act in any such capacity, he as well as the body corporate shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

PART I

(2) In subsection (1) above "director", in relation to any body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by the members thereof, means a member of that body corporate.

25.—(1) A person against whom proceedings are brought under this Part of this Act shall, upon information duly laid by him and on giving to the prosecution not less than three clear days' notice of his intention, be entitled to have any person to whose act or default he alleges that the contravention of the provisions in question was due brought before the court in the proceedings; and if, after the contravention has been proved,—

Contravention due to default of some other person.

- (a) the original defendant proves that the contravention was due to the act or default of that other person, that other person may be convicted of the offence;
- (b) the original defendant further proves that he has used all due diligence to secure that the provisions in question were complied with, he shall be acquitted of the offence.

(2) Where a defendant seeks to avail himself of the provisions of subsection (1) above—

- (a) the prosecution, as well as the person whom the defendant charges with the offence, shall have the right to cross-examine him, if he gives evidence, and any witness called by him in support of his pleas, and to call rebutting evidence;
- (b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

(3) Where it appears to the authority concerned that an offence has been committed in respect of which proceedings might be taken under this Part of this Act against some person and the authority are reasonably satisfied that the offence of which complaint is made was due to an act or default of some other person and that the first-mentioned person could establish a defence under subsection (1) above, they may cause proceedings to be taken against that other person without first causing proceedings to be taken against the first-mentioned person.

(4) In any proceedings taken by virtue of subsection (3) above the defendant may be charged with, and, on proof that the contravention was due to his act or default, be convicted of, the offence with which the person first mentioned in that subsection might have been charged.

PART I

Appeals to
Crown
Court.

26. Where a person aggrieved by an order, determination or other decision of a magistrates' court under this Part of this Act is not by any other enactment authorised to appeal to the Crown Court, he may appeal to that court.

Miscellaneous and supplemental

Local
authorities
for purposes
of Part I.

27. In this Part of this Act "local authority" means—

- (a) as respects the City of London, the Common Council ;
- (b) as respects any London borough, the council of the borough ; and
- (c) as respects any district, the council of the district.

Port health
authorities
and joint
boards.
1936 c. 49.

28. Orders made by the Secretary of State—

- (a) under section 3 of the Public Health Act 1936 may assign to a port health authority any of the functions, rights and liabilities of a local authority under this Part of this Act ;
- (b) under section 6 of that Act may constitute for the purposes of any such functions a united district and a joint board for that district ;

and any such order may be amended by the Secretary of State under section 9 of that Act.

Protection
for local
government
officers
acting in
good faith.

29.—(1) An officer of a council shall not be personally liable in respect of any act done by him in the execution or purported execution of this Part of this Act and within the scope of his employment, if he did that act in the honest belief that his duty under this Part required or entitled him to do it ; but nothing in this subsection shall be construed as relieving a council from any liability in respect of acts of their officers.

(2) Where an action has been brought against an officer of a council in respect of an act done by him in the execution or purported execution of this Part of this Act and the circumstances are such that he is not legally entitled to require the council to indemnify him, the council may, nevertheless, indemnify him against the whole or a part of any damages and costs which he may have been ordered to pay or may have incurred, if they are satisfied that he honestly believed that the act complained of was within the scope of his employment and that his duty under this Part of this Act required or entitled him to do it.

Power of
compulsory
purchase of
land.

30.—(1) A local authority may be authorised by the Minister to purchase land compulsorily for the purposes of this Part of this Act other than those of section 14 above ; and for the purposes of this section "land" has the same meaning as in the Public Health Act 1936.

(2) In relation to the compulsory purchase of land under this section, the Acquisition of Land (Authorisation Procedure) Act 1946 shall apply as if this Act had been in force immediately before the commencement of that Act. PART I
1946 c. 49.

31.—(1) Where any Minister is authorised by this Part of this Act to determine any difference, to give any confirmation, to make any order, or otherwise to act under this Part of this Act, he may cause a local inquiry to be held. Local inquiries.

(2) Subsections (2) to (5) of section 250 of the Local Government Act 1972 shall apply in relation to a local inquiry held under subsection (1) above in any case where a Minister is authorised to determine any difference as they apply in relation to a local inquiry which a Minister causes to be held under subsection (1) of that section. 1972 c. 70.

32.—(1) The supplementary provisions of the Public Health Act 1936 mentioned in subsection (2) below shall be deemed to be incorporated, so far as applicable, in this Part of this Act; and in those provisions as so incorporated— Incorporation
of certain
provisions of
Public Health
Act 1936.

(a) any reference to that Act shall be construed as a reference to this Part of this Act; and 1936 c. 49.

(b) any reference to the Minister within the meaning of that Act shall be construed as a reference to the Minister within the meaning of this Part of this Act.

(2) The provisions of the Public Health Act 1936 referred to in subsection (1) above are—

- section 271 (interpretation of “provide”);
- section 277 (power of councils to require information as to ownership of premises);
- section 283 (notices to be in writing; forms of notices etc.);
- section 284 (authentication of documents);
- section 285 (service of notices);
- section 286 (proof of resolutions, etc.);
- section 304 (judges and justices not to be disqualified by liability to rates);
- section 317 (power to repeal and alter local Acts by provisional orders);
- sections 322 to 325 (default powers in relation to functions of councils); and
- section 328 (powers of Act to be cumulative).

PART I
Application
to Crown.

33.—(1) Her Majesty may by Order in Council provide for the application to the Crown of such of the provisions of this Part of this Act and of any regulations made under it as may be specified in the Order, with such exceptions, adaptations and modifications as may be so specified.

(2) Without prejudice to the generality of subsection (1) above, an Order in Council under this section may make special provision for the enforcement of any provisions applied by the Order, and, where any such provision imposes a liability on a person by reason that he is the occupier of premises, the Order may make provision for determining, in a case where the premises are occupied by the Crown, the person who is to be treated as so liable.

(3) Any Order in Council under this section—

(a) shall be made by statutory instrument and shall be subject to annulment in pursuance of a resolution of either House of Parliament;

(b) may be revoked or varied by a subsequent Order in Council so made.

Interpretation
of Part I.

34. In this Part of this Act, unless the context otherwise requires,—

“animal” does not include bird or fish;

“construction regulations” means regulations with respect to the construction, lay-out or equipment of premises used as a slaughterhouse or knacker’s yard;

“council” includes a port health authority;

“district”, in relation to the local authority of a London borough or the City of London, and in relation to the officers of such an authority, means the borough or the City, as the case may be;

“functions” includes powers and duties;

“horse” includes ass and mule;

“knacker’s yard” means any premises used in connection with the business of slaughtering, flaying or cutting up animals whose flesh is not intended for human consumption;

“licence” means a licence under section 1 above authorising the use of any premises as a slaughterhouse or knacker’s yard, and “slaughterhouse licence” and “knacker’s yard licence” shall be construed accordingly;

“local authority” has the meaning assigned to it by section 27 above and, in relation to any premises or

PART I

to an application in respect of any premises, means the local authority within whose district the premises are situated ;

“ the Minister ” means the Minister of Agriculture, Fisheries and Food ;

“ officer ” includes servant ;

“ slaughterhall ” means that part of a slaughterhouse in which the actual slaughtering of any animal or the dressing of carcases takes place ;

“ slaughterhouse ” means a place for slaughtering animals whose flesh is intended for sale for human consumption, and includes any place available in connection therewith for the confinement of animals while awaiting slaughter there or for keeping, or subjecting to any treatment or process, products of the slaughtering of animals there.

35. Nothing in this Part of this Act shall apply to any slaughterhouse or knacker's yard forming part of an imported animals' wharf or landing place approved by the Minister under the Diseases of Animals Act 1950 for the purpose of the landing of imported animals.

Saving for port slaughter-houses and knackers' yards.
1950 c. 36.

PART II

SLAUGHTER OF ANIMALS

Provisions as to slaughter

36.—(1) Subject to the provisions of this section, no animal to which this section applies shall, in a slaughterhouse or knacker's yard, be slaughtered otherwise than instantaneously by means of a mechanically-operated instrument in proper repair unless—

Methods of slaughter in slaughter-houses and knackers' yards.

(a) by stunning, effected by means of a mechanically-operated instrument or an instrument for stunning by means of electricity, being in either case an instrument in proper repair, it is instantaneously rendered insensible to pain until death supervenes ; or

(b) by such other means as may be prescribed by regulations under this section, it is rendered insensible to pain until death supervenes, and there are complied with such conditions (if any) as respects the use of those means as may be so prescribed.

PART II

(2) Regulations under this section shall be made by the Minister after consultation with such organisations as appear to him to represent the interests concerned ; and the regulations—

(a) may, if the Minister thinks fit, make different provision as respects different classes of animals to which this section applies and as respects different classes of slaughterhouses or knackers' yards ; and

(b) may make such incidental or consequential provision as may appear to the Minister to be necessary or expedient for the purposes of the regulations, including, in particular, in a case where a condition as respects the use of any means of rendering an animal insensible to pain consists in the giving of any approval to any matter by a local authority, provision for securing a right of appeal to a magistrates' court against a withholding or withdrawal of approval.

(3) Subsection (1) above shall not apply to the slaughter, without the infliction of unnecessary suffering, of an animal—

(a) by the Jewish method for the food of Jews and by a Jew duly licensed for the purpose by the Rabbinical Commission referred to in Schedule 1 to this Act ; or

(b) by the Mohammedan method for the food of Mohammedans and by a Mohammedan.

(4) Any person who slaughters or attempts to slaughter any animal in contravention of subsection (1) above shall be guilty of an offence, unless he proves that by reason of an accident or other emergency the contravention was necessary for preventing physical injury or suffering to any person or animal.

(5) This section applies to horses, cattle, sheep, swine and goats.

Methods of slaughter of certain swine otherwise than in slaughterhouses or knackers' yards.

37.—(1) Subject to subsection (2) below, no swine exceeding twelve weeks in age shall, elsewhere than in a slaughterhouse or knacker's yard, be slaughtered otherwise than instantaneously by means of a mechanically-operated instrument in proper repair unless by stunning, effected by means of a mechanically-operated instrument or an instrument for stunning by means of electricity, being in either case an instrument in proper repair, it is instantaneously rendered insensible to pain until death supervenes.

(2) Subsection (1) above shall not apply to the slaughter of swine at a laboratory, research station or similar institution if the slaughtering is done for the purposes of the diagnosis of disease or for the purposes of research in connection with the arts of veterinary surgery or medicine.

PART II

(3) Any person who slaughters or attempts to slaughter any swine in contravention of subsection (1) above shall be guilty of an offence, unless he proves that by reason of an accident or other emergency the contravention was necessary for preventing physical injury or suffering to any person or animal.

38.—(1) The Minister may, after consultation with such organisations as appear to him to represent the interests concerned, make such regulations as appear to him to be expedient for securing humane conditions and practices in connection with the slaughter, in slaughterhouses and knackers' yards, of animals to which section 36 above applies; and such regulations may in particular—

Regulations for securing humane conditions of slaughter in slaughterhouses and knackers' yards.

- (a) prescribe requirements as to the construction, lay-out and equipment of premises used as slaughterhouses or knackers' yards;
- (b) prescribe conditions to be observed in connection with the confinement and treatment of animals to which section 36 above applies while awaiting slaughter in such premises, and in connection with the slaughter there of such animals.

(2) Regulations under this section may make different provision in relation to different kinds of animals and in relation to premises used for different purposes in connection with the slaughter of animals and may—

- (a) so far as they are made for the purposes mentioned in subsection (1)(a) above, be made to apply subject to exceptions or modifications in relation to premises constructed or adapted for use before the date on which the regulations come into force;
- (b) in any case be made without applying, or applying subject to exceptions or modifications, in relation to slaughterhouses forming part of an imported animals' wharf or approved landing place for the purposes of the Diseases of Animals Act 1950, or applying (with or without exceptions or modifications) only in relation to any such slaughterhouse of that description as may be specified in the regulations;
- (c) provide, subject to such limitations and safeguards, if any, as may be specified in the regulations, for the appropriate authority to grant in relation to particular premises, either unconditionally or subject to conditions, exemption from the operation of specific provisions of those regulations where it appears to the authority that compliance with those provisions cannot for the time being reasonably be required with respect to the premises or any activities carried on there;

1950 c. 36.

PART II

- (d) provide for the regulations to come into force on different days fixed by, or by an order to be made by statutory instrument under, the regulations in respect of different classes or descriptions of premises and different areas, and for different provisions to come into force on different days ;

and in paragraph (c) above "appropriate authority", except in relation to a slaughterhouse provided by a local authority, means a local authority, and in relation to a slaughterhouse so provided means the Minister.

(3) Regulations under this section may make provision corresponding (with or without modifications) with any of the provisions in force immediately before the commencement of the Slaughter of Animals (Amendment) Act 1954, under section 5(1) of the Protection of Animals Act 1911, section 4 of the Slaughter of Animals Act 1933 or section 1 of the Slaughter of Animals (Amendment) Act 1951.

1954 c. 59
1911 c. 27
1933 c. 39.
1951 c. 49.

(4) Without prejudice to subsection (3) above, regulations made under this section with respect to horses shall in particular make provision with respect to the matters specified in Schedule 2 to this Act.

(5) Regulations under this section may prescribe penalties for offences against the regulations, not exceeding a fine of £50 or imprisonment for a term of three months or both, and may impose on the occupiers of premises to which the regulations apply responsibility for compliance with any of the provisions of the regulations.

(6) Where a person convicted of any offence against regulations under this section (including a person so convicted by virtue of section 35 of the Magistrates' Courts Act 1952) is the holder of a licence under section 1 above in respect of the premises where the offence was committed, the court may, in addition to any other punishment, cancel the licence.

1952 c. 55.

Licensing of slaughtermen

Slaughtermen
to be licensed.

39.—(1) Subject to subsection (2) below, no animal to which section 36 above applies shall be slaughtered or stunned in a slaughterhouse or knacker's yard by any person except in accordance with a licence granted by a local authority and in force under this section.

1950 c. 36.

(2) Subsection (1) above shall not apply with respect to the slaughter, under the Diseases of Animals Act 1950, of an animal by an officer of, or a person employed by, the Minister.

(3) Any person who slaughters or stuns, or attempts to slaughter or stun, any animal in contravention of subsection (1) above shall be guilty of an offence, unless he proves that by

reason of an accident or other emergency the contravention was necessary for preventing physical injury or suffering to any person or animal.

PART II

40.—(1) A licence under section 39 above (in this section referred to as a "licence")—

Licences and applications for licences.

(a) except where it is granted for the purposes of the slaughter of animals by the Jewish method for the food of Jews or the Mohammedan method for the food of Mohammedans, shall specify—

(i) the kinds of animals which may be slaughtered or stunned by the holder of the licence ; and

(ii) the types of instruments which may be used by him for slaughtering or stunning any such animal ;

(b) may, in such cases as may be prescribed by regulations under this section, be granted or renewed subject to a condition prohibiting the slaughter of any animal in pursuance of the licence except under the supervision of the holder of a licence in force which is not subject to a like condition ;

(c) shall be in force for such period not exceeding one year as may be specified in the licence and may be renewed from time to time for a like period at the discretion of the authority by whom it was granted ; and

(d) except where it authorises the holder to slaughter or stun horses (whether or not it also authorises him to slaughter or stun other animals), shall be in force not only in the district of the authority by whom it was granted but also in the district of any other local authority.

(2) The Minister may make regulations for prescribing qualifications for holding licences, or licences of any class, and for prohibiting the grant or renewal of licences to persons not having the prescribed qualifications ; and a licence shall not be granted by a local authority except to a person who has attained the age of 18 years and is, in their opinion, a fit and proper person to hold a licence.

(3) A local authority may refuse an application for the grant or renewal of a licence if the applicant has failed to comply with any condition of a licence previously granted to him by that or any other local authority or has been convicted of an offence under—

(a) this Part of this Act or any regulations made under it ;

(b) the Slaughter of Animals (Scotland) Acts 1928 to 1954 ;

(c) the Protection of Animals Act 1911 or the Protection of Animals (Scotland) Act 1912 ; or

1911 c. 27.
1912 c. 14.

PART II
1950 c. 36.

(d) any order made under section 20 of the Diseases of Animals Act 1950 regulating the transport of animals.

(4) The local authority by whom a licence was granted may revoke it—

(a) if they are satisfied that the holder is no longer a fit and proper person to hold it ; or

(b) if by virtue of subsection (3) above they could refuse an application for its renewal.

(5) A local authority may at any time suspend for such period as they may determine the operation within their district of any licence which is in force there, and in particular the operation of any licence held by a person to whom by virtue of subsection (3) above they could refuse the grant or renewal of a licence.

(6) Any person aggrieved by the refusal of a local authority to grant or renew a licence, or by the revocation, or the suspension of the operation, of a licence, may, within one month of intimation of the refusal, revocation or suspension, appeal against it to a magistrates' court.

(7) Any person applying to a local authority for a licence shall in his application state—

(a) whether he holds a licence granted by any other (and, if so, which) local authority ;

(b) whether he has been refused a licence or had a licence revoked or the operation thereof suspended by any other (and, if so, which) local authority ; and

(c) whether he has any similar application pending before any other (and, if so, which) local authority.

(8) Any person who knowingly makes a false statement for the purpose of obtaining a licence shall be guilty of an offence.

(9) A local authority may charge a fee not exceeding 10p for the grant of a licence and a fee not exceeding 5p for the renewal of a licence.

(10) A licence granted by any local authority shall be produced on demand for inspection by any other local authority within whose district the licence is in force.

Enforcement and legal proceedings

Execution and
enforcement
of Part II.

41. It shall be the duty of every local authority to execute and enforce in their district the provisions of this Part of this Act and of any regulations made under it.

42.—(1) Subject to subsection (3) below, at any time when business is, or appears to be, in progress, or is usually carried on, in a slaughterhouse or knacker's yard, any officer of the Minister, or an officer appointed for the purpose by the local authority within whose district the slaughterhouse or knacker's yard is situate, may enter it for the purpose of ascertaining whether there is or has been any contravention of this Part of this Act or of any regulations made under it. PART II
Powers of entry.

(2) Any person who obstructs a person in the exercise of his powers under subsection (1) above shall be guilty of an offence and liable to a fine not exceeding £20.

(3) Subsection (1) above shall not authorise entry into a slaughterhouse or knacker's yard which for the time being is, or is comprised in, an infected place within the meaning of the Diseases of Animals Act 1950.

1950 c. 36

43.—(1) All offences under this Part of this Act and regulations made under it shall be punishable on summary conviction. Prosecution and punishment of offences.

(2) A person guilty of an offence under section 36, 37, 39 or 40 above shall be liable to a fine not exceeding £50 or to imprisonment for a term not exceeding three months or to both.

(3) Where a person convicted of any such offence as is mentioned in subsection (2) above (including a person so convicted by virtue of section 35 of the Magistrates' Courts Act 1952) is the holder of a licence under section 1 above in respect of the premises where the offence was committed, the court may, in addition to any other punishment, cancel the licence. 1952 c. 55.

Supplemental

44. Any regulations under this Part of this Act shall be made by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament. Regulations.

45. In this Part of this Act, unless the context otherwise requires,— Interpretation of Part II.

“contravention” in relation to a provision of this Part of this Act or of any regulations made under it, includes a failure to comply with that provision ;

“horse” includes ass and mule ;

“knacker's yard” means any building, premises or place used in connection with the business of killing animals whose flesh is not intended for sale for human consumption ;

PART II

“local authority” means the council of a district or London borough or the Common Council of the City of London ;

“the Minister” means the Minister of Agriculture, Fisheries and Food ;

“slaughterhouse” means any building, premises or place used in connection with the business of killing animals whose flesh is intended for sale for human consumption.

PART III**MISCELLANEOUS AND GENERAL**

Consequential
and other
amendments.

46.—(1) The enactments specified in Schedule 3 to this Act shall have effect subject to the amendments there specified, being amendments consequential upon the provisions of this Act.

1955 c. 16
(4 & 5 Eliz. 2).

(2) The Food and Drugs Act 1955 shall have effect subject to the amendments specified in Schedule 4 to this Act, being amendments which preserve the effect of certain enactments repealed by this Act.

Transitional
provisions,
savings and
repeals.

47.—(1) The transitional provisions and savings contained in Schedule 5 to this Act shall have effect.

(2) Subject to the provisions of Schedule 5, the enactments specified in Schedule 6 to this Act are hereby repealed to the extent specified in the third column of that Schedule.

1889 c. 63.

(3) Nothing in this Act shall be taken as prejudicing the operation of section 38 of the Interpretation Act 1889 (which relates to the effect of repeals).

Short title,
construction,
commence-
ment and
extent.

48.—(1) This Act may be cited as the Slaughterhouses Act 1974.

(2) References in this Act to any enactment shall, except in so far as the context otherwise requires, be construed as references to that enactment as amended by or under any other enactment including this Act.

(3) This Act shall come into operation on 1st April 1974.

(4) This Act does not extend to Scotland or to Northern Ireland.

SCHEDULES

SCHEDULE 1

Section 36.

THE RABBINICAL COMMISSION FOR THE LICENSING OF SHOCHETIM

Membership

1. The Rabbinical Commission for the licensing of Shochetim (in this Schedule referred to as "the Commission") shall consist of a permanent chairman and nine other members.

2. The Chief Rabbi of the United Hebrew Congregations of Great Britain and the Commonwealth shall, by virtue of his office, be the permanent chairman of the Commission.

3. Of the members of the Commission other than the permanent chairman—

- (a) one, who shall be a vice-chairman, shall be appointed by the Spanish and Portuguese Synagogue (London);
- (b) three shall be appointed by the Beth Din appointed by the United Synagogue (London);
- (c) two shall be appointed by the Federation of Synagogues (London);
- (d) one shall be appointed by the Union of Orthodox Hebrew Congregations (London); and
- (e) two shall be appointed by the president for the time being of the London committee of deputies of British Jews to represent provincial congregations.

Supplementary provisions

4. The functions of the Commission shall be exercisable notwithstanding any vacancy amongst the members thereof.

5. The quorum of the Commission shall be four.

SCHEDULE 2

Section 38.

PARTICULAR MATTERS TO BE DEALT WITH BY REGULATIONS UNDER SECTION 38 RELATING TO HORSES

1. Construction, equipment and lay-out of lairages, including provision of racks for fodder and supply of water.

2. Feeding and watering of horses pending slaughter.

3. Construction, equipment and lay-out of premises, rooms or compartments in which the slaughter takes place, and conditions to be observed therein at the time of slaughter.

4. Disposal of blood, offal and refuse.

5. Notices to be given and returns to be made to local authorities by persons carrying on business as slaughterers of horses, and records to be kept by such persons.

Section 46.

SCHEDULE 3**CONSEQUENTIAL AMENDMENTS**

- 1955 c. 16. 1. In sections 8(4) and 12(2) of the Food and Drugs Act 1955 for (4 & 5 Eliz. 2). the words "Part IV of this Act" there shall be substituted the words "section 1 of the Slaughterhouses Act 1974".
- 1963 c. 33. 2. In section 54(4) of the London Government Act 1963, for the words "the Food and Drugs Act 1955 and the Slaughter of Animals Act 1958" there shall be substituted the words "and the Food and Drugs Act 1955" and for the words "II and III" there shall be substituted the words "and II".
- 1966 c. 42. 3. In Schedule 3 to the Local Government Act 1966, in Part II, for the words "28. Section 3(10) of the Slaughter of Animals Act 1958" there shall be substituted the words "28. Section 40(9) of the Slaughterhouses Act 1974".
- 1967 c. 24. 4. In section 1(2) of the Slaughter of Poultry Act 1967, for the words "the Slaughter of Animals Act 1958" there shall be substituted the words "the Slaughterhouses Act 1974", and in section 1(4) of that Act for the word "1958" there shall be substituted the word "1974".
- 1968 c. 27. 5. In section 10(1) of the Firearms Act 1968, for the words "section 3 of the Slaughter of Animals Act 1958" there shall be substituted the words "section 39 of the Slaughterhouses Act 1974".
- 1972 c. 70. 6. In section 259(3) of the Local Government Act 1972, after the word "1955" there shall be inserted the words "or in the Slaughterhouses Act 1974".

Section 46.

SCHEDULE 4**AMENDMENTS OF THE FOOD AND DRUGS ACT 1955**

1. There shall be added at the end of section 13 (regulations as to food hygiene) the following subsection—
- "(9) If a person convicted of an offence against any regulations made under this section with respect to slaughterhouses or knackers' yards is the holder of a licence under section 1 of the Slaughterhouses Act 1974 in respect of the premises where the offence was committed, the court may, in addition to any other punishment, cancel the licence."
2. There shall be added at the end of section 80 (power to provide cold stores and refrigerators) the following subsection—
- "(4) Subsections (1) to (5) of section 250 of the Local Government Act 1972 (which relate to local inquiries) shall apply for the purposes of this section as if any reference in those subsections to that Act included a reference to this section."

3. There shall be added at the end of section 103 (powers of entry of Minister's officers) the following subsection—

SCH. 4

“(3) For the purposes of any regulations made under section 13 of this Act, this section and subsections (1) and (3) of section 105 shall have effect as if the Minister of Agriculture, Fisheries and Food as well as the local authority were empowered to enforce those regulations so far as they apply to slaughterhouses and knackers' yards.”

4. There shall be inserted in section 123 (regulations, orders, etc.) after subsection (4) the following subsection—

“(4A) Without prejudice to any other power with respect thereto, any regulations made with respect to slaughterhouses or knackers' yards under section 13 of this Act may include provision for the regulations to come into force on different days fixed by, or by an order to be made by statutory instrument under, those regulations in respect of different classes or descriptions of premises and different areas, and for different provisions to come into force on different days.”

5. There shall be inserted in section 126 (expenses) after subsection (1) the following subsection—

“(1A) The Minister of Agriculture, Fisheries and Food may by regulations approved by the Treasury provide for the making by him of contributions towards expenses incurred by a local authority in carrying out at slaughterhouses their functions with respect to the inspection of meat prepared for sale for human consumption in cases where the Minister is satisfied that, by reason of the extent to which the meat appears to him to exceed in quantity what it appears to him should be regarded as required for consumption in the authority's district, those expenses impose an unduly heavy burden on the ratepayers of that district.”

SCHEDULE 5

Section 47.

TRANSITIONAL PROVISIONS AND SAVINGS

1.—(1) In so far as anything done or having effect as if done under or in pursuance of any of the enactments repealed by this Act (in this Schedule referred to as “the repealed enactments”) could have been done under or in pursuance of a corresponding provision of this Act, it shall not be invalidated by the repeal but shall have effect as if done under or in pursuance of that provision; and anything begun under any of the repealed enactments may be continued under the corresponding provision of this Act as if begun under that provision.

(2) Sub-paragraph (1) above applies in particular to any order, regulation, byelaw, application, determination, decision or agreement made, licence or authorisation granted or renewed, notice, consent or approval given, requirement imposed, warrant issued or inquiry held.

2. Without prejudice to any express amendment made by this Act, where any enactment or document refers, either expressly or by

SCH. 3 implication, to any of the repealed enactments, the reference shall, except where the context otherwise requires, be construed as, or as including, a reference to the corresponding provision of this Act.

3. Where any period of time specified in any of the repealed enactments is current at the commencement of this Act, this Act shall have effect as if the corresponding provision of this Act had been in force when that period began to run.

4.—(1) Nothing in this Act shall affect the repealed enactments in their operation in relation to offences committed before the commencement of this Act.

(2) Where an offence, for the continuance of which a penalty was provided, has been committed under any of the repealed enactments, proceedings may be taken under this Act in respect of the continuance of the offence after the commencement of this Act, in the same manner as if the offence had been committed under the corresponding provision of this Act.

5. Without prejudice to paragraph 1 above, any reference in this Act (whether express or implied) to a thing done or required or authorised to be done, or omitted to be done, or to an event which has occurred, under or for the purposes of or by reference to or in contravention of any of the provisions of this Act shall, except where the context otherwise requires, be construed as including a reference to the corresponding thing done or required or authorised to be done, or omitted, or to the corresponding event which occurred as the case may be, under or for the purposes of or by reference to or in contravention of the corresponding provisions of the repealed enactments and of the enactments repealed by those enactments.

1963 c. 33.
1972 c. 70.

6. Nothing in this Act shall affect the operation of section 84 of the London Government Act 1963 (supplemental and transitional provision) or section 254 of the Local Government Act 1972 (consequential and supplementary provision) or any order made under either of those sections; and the definitions of "local authority" in sections 27 and 45 above shall have effect—

(a) in relation to any time before 1st April 1965, as if they included a reference to the council of a metropolitan borough; and

(b) in relation to any time before 1st April 1974, as if they included references to the council of a county or non-county borough and to the council of an urban or rural district.

1955 c. 16
(4 & 5 Eliz. 2).

7. Nothing in this Act shall affect the operation of section 79 of the Food and Drugs Act 1955 (special provisions as to the compensation payable under a local Act where the use of a slaughterhouse is rendered unlawful by the provision of a public slaughterhouse) in relation to any slaughterhouse the use of which was rendered unlawful before 1st January 1974 (the date on which section 5(3) of the Agriculture (Miscellaneous Provisions) Act 1972 came into force).

1972 c. 62.

SCHEDULE 6

Section 47.

REPEALS

Chapter	Short Title	Extent of Repeal
4 & 5 Eliz. 2. c. 16.	The Food and Drugs Act 1955.	Part IV except section 80. In section 80, in subsection (1), the words " a publicslaughterhouse or ". In section 120(1), the words from " The reference in this subsection " to the end. Section 125(1)(c). In section 130(1), the words " or of paragraph (a) of section seventy-four thereof ". In section 135(1), in the definition of " premises " the words " except in Part IV of this Act " and the definitions of " slaughterhouse facilities " and " slaughterhouse licence ".
6 & 7 Eliz. 2. c. 70.	The Slaughterhouses Act 1958.	The whole Act.
7 & 8 Eliz. 2. c. 8.	The Slaughter of Animals Act 1958.	The whole Act.
1963 c. 33.	The London Government Act 1963.	In section 54(1), paragraph (c), the words " and the local authority for the purposes of each of the said Acts of 1958 " and the words " slaughterhouses, knackers' yards, and ". In Schedule 13, Part III.
1967 c. 80.	The Criminal Justice Act 1967.	In Part I of Schedule 3, the entries relating to section 69(2) of the Food and Drugs Act 1955 and section 8(2) of the Slaughter of Animals Act 1958.
1972 c. 62.	The Agriculture (Miscellaneous Provisions) Act 1972.	Section 5. In section 27, in subsection (2), the words " paragraphs (a), (c), (d) and (e) of subsection (1) and subsections (2) and (3) of section 5 " and the words " to sections 65, 70(1) and 75 to 78 of the Food and Drugs Act 1955, to the Slaughterhouses Act 1958 "; and in subsection (4), the word " 5 " where it first occurs.